

M/S Yash Footwear And Another v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 2 November 2021 · Writ - C No. 26589 of 2021 · **Writ petition disposed of; petitioners may apply afresh to the Executive Engineer, Vidyut Vitran Khand, Sigra, Varanasi, with occupation documents and, if the landlord withholds consent, an Annexure 4.2 indemnity bond; the licensee shall notice the owner, consider both sides' documents, and pass a speaking order in accordance with law within six weeks; occupancy and entitlement not decided**

HEADNOTE

A tenant or occupier who cannot obtain the landlord's consent required by Clause 4.4(a)(vi) of the U.P. Electricity Supply Code, 2005 may still apply for a connection on an indemnity bond in the form of Annexure 4.2. Following *Seema Mansoor v. U.P. Power Corporation Limited*, 2015 (1) ALJ 44, want of the owner's consent is not, of itself, a ground to refuse supply. That path does not relieve the licensee of assessing whether the applicant is a lawful occupant or is fraudulently claiming occupation. The assessment is to be made after notice and an opportunity of hearing to the lawful owner. Where possession and its legality are seriously in dispute — particularly when continuing occupation is not admitted and is unsupported by documents — the parties may be relegated to a civil court. The writ court did not grant the connection. It gave liberty to apply afresh to the Executive Engineer, Vidyut Vitran Khand, Sigra, Varanasi, with occupation documents and, if consent is withheld, an Annexure 4.2 bond; the licensee shall notice the owner, consider both sides' documents, and pass a speaking order in accordance with law and these observations within six weeks. The Court expressed no opinion on whether the petitioners are lawful occupants or entitled to supply despite the owner's objection.

FACTUAL SUMMARY

M/s Yash Footwear and another claimed to be tenants of premises No. D 59/139-1, Sigra, Mahmoorganj Road, Varanasi, owned by respondent no. 4. In July 2008 the owner sought to evict petitioner no. 2. Suit No. 371 of 2008 for a permanent prohibitory injunction against interference with possession remains pending. The petitioners say the owner then disconnected electricity. On 13 April 2017 petitioner no. 2 applied to the electricity department for a separate connection. Petitioner no. 2 also moved under Section 28 of U.P. Act No. 13 of 1972 to enforce the landlord's repair obligation.

The owner opposed the connection. Respondents 2 and 3, the licensee, withheld supply and insisted on a no-objection certificate from the owner. The petitioners sought a writ for a connection, submitting that electricity is a basic need and, following *Seema Mansoor*, a tenant who furnishes an Annexure 4.2 indemnity bond cannot be refused for want of the landlord's consent under Clause 4.4(a)(vi).

REUSABLE CONSTRUCTIONS

1. Before accepting an Annexure 4.2 indemnity bond for a new connection, the licensee must assess whether the applicant is a lawful occupant or is fraudulently claiming occupation, after giving the lawful owner an opportunity of hearing. ¶ 7-8
2. Where possession and its legality are seriously in dispute, particularly when continuing occupation is not admitted and is unsupported by documents, the parties may be relegated to a civil court rather than granted a connection on the indemnity-bond path. ¶ 7
3. Want of the landlord's consent under Clause 4.4(a)(vi) is not a conclusive bar: an occupier who cannot obtain consent may apply with an Annexure 4.2 indemnity bond, and the licensee must then notice the owner, consider both sides' documents, and pass a speaking order. ¶ 4-5, 8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier's indemnity-bond application requires occupancy assessment after hearing the owner; serious undocumented possession dispute may go to the civil court

QUESTION

Where a landlord withholds consent and the licensee withholds a tenant's new connection on that ground, may the Court mandamus supply on an Annexure 4.2 indemnity bond without an occupancy assessment, or must the licensee first hear the owner?

HOLDING

The Court followed *Seema Mansoor* that a lessee, tenant or occupier who submits an Annexure 4.2 indemnity bond cannot be refused a connection merely for want of the landlord's consent under Clause 4.4(a)(vi). It accepted, however, that before acting on such a bond the licensee must assess whether the applicant is a lawful occupant or is fraudulently claiming occupation, after notice and hearing to the lawful owner. Where possession and its legality are seriously in dispute, and continuing occupation is not admitted and is unsupported by documents, the parties may be relegated to a civil court. Liberty was given to apply afresh to respondent no. 2 (the Executive Engineer, Vidyut Vitran Khand, Sigra, Varanasi) with occupation documents and, if consent is withheld, an Annexure 4.2 bond. On such an application the authority shall notice the owner, consider both sides' documents, and pass a speaking order in accordance with law and these observations within six weeks. The writ petition was disposed of. The Court expressed no opinion on whether the petitioners are lawful occupants or entitled to supply despite the owner's objection. ¶ 7-8, 10-12

QUALIFIER

Notice was not issued to the landlord (respondent no. 4). The connection was neither granted nor refused on the writ.

FLAG Unnumbered order; paras are sequential blocks after the cause-title (1 heard; 2 no notice to respondent no. 4; 3 petitioners' case; 4 *Seema Mansoor* quoted; 5 petitioner on 4.4(a)(vi) and Annexure 4.2; 6 licensee on occupancy as a question of fact; 7 occupancy assessment and possible civil-court relegation; 8 fresh application, notice to owner, speaking order, six weeks; 9 EE identified; 10 competent authority is respondent no. 2; 11 disposed of; 12 no opinion on merits). Counsel cited Clause 4.4(a)(vi); the Court also wrote 'clauses 4.4 and Annexure 4.2'. *Seema Mansoor* is cited as 2015 (1) ALJ 44 and later misspelt '*Seema Manssor*'.

PRINCIPLE TAGS

occupier-needs-proof-of-occupancy-plus-indemnity-bond-clause-4.4 The Court held that an indemnity bond cannot be accepted until the licensee assesses lawful occupation, after hearing the owner; undocumented or unadmitted possession may send the parties to the civil court. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Limited and others*. ¶ 6-8

occupier-entitled-to-connection-on-indemnity-bond-annexure-4.2 Following *Seema Mansoor*, a tenant who cannot obtain the landlord's consent may apply on an Annexure 4.2 indemnity bond; that proposition was treated as the law to be applied by the Executive Engineer, not as a mandamus to connect on these facts. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Limited and others*. ¶ 4-5, 8

clause-4.4-occupant-connection-on-indemnity-bond Clause 4.4(a)(vi) consent, if withheld, is to be substituted by the Annexure 4.2 bond; the licensee must still notice the owner and pass a speaking order on both sides' documents. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Limited and others*. ¶ 5, 8

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents Operative relief was liberty to apply afresh with occupation documents and, if needed, an Annexure 4.2 bond, for a speaking order within six weeks; the connection was not granted on the writ. ¶ 8, 10-11

apply-under-supply-code-consider-in-accordance-with-law The Executive Engineer was directed to decide the fresh application in accordance with law and the Court's observations, without a merits finding on occupancy or entitlement. ¶ 8, 11-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE LAWFUL OCCUPANTS OF THE PREMISES

Expressly left open. The Court recorded that it had not expressed any opinion on the merits of that claim. ¶ 12

NOT DECIDED — WHETHER THE PETITIONERS ARE ENTITLED TO AN ELECTRICITY CONNECTION DESPITE THE LAWFUL OWNER'S OBJECTION

Expressly left to the Executive Engineer's speaking order on a fresh application, after notice to the owner. ¶ 8, 12

Recorded as pending; not adjudicated. ¶ 3

NOT DECIDED — WHETHER THE OWNER'S DISCONNECTION OF SUPPLY WAS ILLEGAL

Pleaded by the petitioners. The Court dealt only with a fresh application for a separate connection. ¶ 3, 8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Limited and others</i> 2015 (1) ALJ 44 Allahabad High Court	As quoted from paragraph 16: the licensee is obliged to supply on a proper application; every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Supply Code, 2005; an application cannot be refused for want of the landlord's consent; a lessee, tenant or occupier who submits an indemnity bond cannot be refused merely on that ground.		Court	Followed

SCJ-3245 · M/S Yash Footwear And Another v. State of U.P. And 3 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.